

ORIGINAL

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Daniel D. Domenico**

Civil Action No. 1:21-cv-01408-DDD-SBP

SHELLEE LAWSON,

Plaintiff,

v.

SAFECO INSURANCE COMPANY OF AMERICA,

Defendant.

VERDICT FORM

We, the jury, on our oaths, present our answers to the following questions submitted by the Court, to which we have all unanimously agreed:

Plaintiff Lawson's Breach of Contract Claim

1. Did Plaintiff Shellee Lawson prove, by a preponderance of the evidence, each and every element of her claim that Defendant Safeco Insurance Company of America committed breach of contract, as set forth in Instruction No. 19?

ANSWER: Yes X No _____

If you answered "No" to Question No. 1, then do not answer any other Questions on this Verdict Form; instead, sign and date this Verdict Form on the last page.

If, on the other hand, you answered "Yes" to Question No. 1, then answer the following Question No. 2.

2. Please determine (without yet deciding an amount) whether Plaintiff Lawson proved, by a preponderance of the evidence, that she is entitled to general damages as set forth in Instruction Nos. 25, 26, and 27. If you find Plaintiff is only entitled to nominal damages, please proceed to Question No. 3 and enter \$1 on the empty line. If you find Plaintiff is entitled to general damages, please proceed to Question No. 3 and decide the amount.

Plaintiff Lawson's Damages

3. If you answered "Yes" to Question No. 1, state the amount of damages, if any, as defined by Instruction Nos. 25, 26, and 27, that you find Plaintiff Shellee Lawson proved by a preponderance of the evidence was caused by Defendant Safeco Insurance Company of America's breach of contract.

ANSWER: \$ 35,410.29

Proceed to Question No. 4.

Defendant Safeco's Affirmative Defense of Setoff

4. If you answered "Yes" to Question No. 1, then did Defendant Safeco Insurance Company of America prove, by a preponderance of the evidence, each and every element of its affirmative defense that it is entitled to setoff, as set forth in Instruction No. 28?

ANSWER: Yes X No _____

If you answered "No" to Question No. 4, then do not answer the following Question No. 5; instead, sign and date this Verdict Form on the last page.

If, on the other hand, you answered "Yes" to Question No. 4, then answer the following Question No. 5.

5. What amount of damages, as described in Instruction No. 28, did Defendant Safeco Insurance Company of America prove, by a preponderance of the evidence, that it is entitled to set off?

ANSWER: \$ 7,172.104

Proceed to sign and date this Verdict Form on the last page.

Juror name redacted.

Foreperson

Dated this 25 day of September, 2024.